

CHAPTER 18.

An Act to increase to three hundred and fifty million pounds the aggregate amount which may be issued to the Exchange Equalisation Account out of the Consolidated Fund.

[18th May 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The aggregate amount which may be issued to the Exchange Equalisation Account out of the Consolidated Fund or the growing produce thereof under subsection (4) of section twenty-four of the Finance Act, 1932, shall, instead of being the sum of one hundred and fifty million pounds, be the sum of three hundred and fifty million pounds.

Amendment
of s. 24 (4)
of 22 & 23
Geo. 5. c. 25.

2. This Act may be cited as the Exchange Equalisation Account Act, 1933.

CHAPTER 19.

An Act to grant certain duties of Customs and Inland Revenue (including Excise), to alter other duties, and to amend the law relating to Customs and Inland Revenue (including Excise) and the National Debt, and to make further provision in connection with finance. [28th June 1933.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects the Commons of the United Kingdom in Parliament assembled, towards raising the necessary supplies to defray Your Majesty's public expenses, and making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the several duties

hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

CUSTOMS AND EXCISE.

Reduced
duties and
drawbacks
on certain
descriptions
of beer.
21 & 22
Geo. 5. c. 49.

1.—(1) In lieu of the duty of excise charged under section one of the Finance (No. 2) Act 1931, there shall be charged in respect of beer brewed in the United Kingdom a duty of excise at the rates set out in Part I of the First Schedule to this Act, and in lieu of the excise drawback allowed under the said section one there shall be allowed, on the exportation of beer from the United Kingdom as merchandise, or for use as ships' stores, an excise drawback at the rates set out in Part II of that Schedule, subject to the provisions of that Part of that Schedule.

(2) In lieu of the duty of customs charged under the said section one, there shall be charged in respect of beer imported into the United Kingdom a duty of customs at the rates set out in Part III of the First Schedule to this Act, and in lieu of the customs drawback allowed under the said section one there shall be allowed, on the exportation of beer from the United Kingdom as merchandise, or for use as ships' stores, a customs drawback at the rates set out in Part IV of that Schedule, subject to the provisions of that Part of that Schedule.

13 & 14
Geo. 5. c. 14. (3) Sections two and three of the Finance Act, 1923 (which relate respectively to rebates from the excise duty and customs duty on beer), shall cease to have effect as respects the duties charged under this section.

(4) The duty of customs charged, and the customs and excise drawbacks allowed, under this section shall be charged and allowed, as the case may be, in addition to the duty and drawbacks charged and allowed in respect of beer under the next following section of this Act.

(5) Where the aggregate amount of the excise duty charged under this section on the several constituents of beer which has been prepared by a process of mixing by a brewer for sale exceeds the amount of the excise duty

which would have been chargeable under this section on the mixture, the Commissioners may, subject to such conditions as they may prescribe, remit or repay the excess.

PART I.
—*cont.*

The conditions prescribed under this subsection may, notwithstanding anything in any enactment, include conditions as to the method of computing the last-mentioned amount and the method of ascertaining any matter by reference to which that amount is to be computed.

(6) In this section and in the First Schedule to this Act the expression "beer" does not include beer of any of the descriptions specified in subsection (1) of section two of the Finance Act, 1930.

20 & 21
Geo. 5. c. 28.

(7) This section shall be deemed to have had effect as from the twenty-sixth day of April, nineteen hundred and thirty-three :

Provided that the amendments as to drawback made by this section shall not have effect in relation to any beer as respects which it is shown to the satisfaction of the Commissioners that duty was paid at the rates in force before the twenty-sixth day of April, nineteen hundred and thirty-three.

2.—(1) The duties of customs charged by section seven of the Finance Act, 1925, as amended by section four of the Finance Act, 1929, on hops, hop oil, and extracts, essences or other similar preparations made from hops shall continue to be charged until the end of the fifteenth day of August, nineteen hundred and thirty-seven.

Continuation of duty on hops, &c., and amendment of additional duty and drawbacks on beer.

(2) In lieu of the additional duty of customs charged under subsection (2) of the said section seven as so amended, but in addition to any other duty of customs for the time being chargeable in respect of beer, there shall, as from the twenty-sixth day of April, nineteen hundred and thirty-three, until the end of the said fifteenth day of August, be charged in respect of beer imported into the United Kingdom a duty of customs of ten pence for every thirty-six gallons and so in proportion for any less number of gallons.

15 & 16
Geo. 5. c. 36.
19 & 20
Geo. 5. c. 21.

(3) In lieu of the additional customs drawback allowed under the said subsection, but in addition to any

PART I.
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other customs drawback for the time being allowed in respect of beer, there shall, on the exportation from the United Kingdom as merchandise, or for use as ships' stores, of beer on which it is shown to the satisfaction of the Commissioners that the additional customs duty charged under this section has been paid, be allowed a customs drawback of ten pence for every thirty-six gallons and so in proportion for any less number of gallons.

(4) In lieu of the additional excise drawback allowed under subsection (3) of the said section seven as so amended, but in addition to any other excise drawback for the time being allowed in respect of beer, there shall, as from the said twenty-sixth day of April, until the end of the fifteenth day of November, nineteen hundred and thirty-seven, be allowed on the exportation of beer from the United Kingdom as merchandise, or for use as ships' stores, an excise drawback of ten pence for every thirty-six gallons and so in proportion for any less number of gallons.

(5) Section three of the Finance Act, 1923 (which relates to rebates from the customs duty on beer), shall cease to have effect as respects the duty charged in respect of beer under this section.

Excise duty
on licence
to brewer
for sale.

10 Edw. 7.
& 1 Geo. 5.
c. 8.

3. Such of the provisions of the Finance (1909-10) Act, 1910, as relate to the excise duty chargeable on a licence to a brewer for sale shall have effect, as respects any such licence granted on or after the first day of October, nineteen hundred and thirty-three, as if the provisions of the Second Schedule to this Act were substituted for Scale 2 of the First Schedule to that Act.

Increased
duty on
matches.

17 & 18
Geo. 5. c. 10.

4.—(1) As from the twenty-sixth day of April, nineteen hundred and thirty-three, there shall, in lieu of the duties of customs charged on matches under section eight of the Finance Act, 1927, be charged on matches imported into the United Kingdom duties of customs at the rates specified in the Third Schedule to this Act.

(2) Subsections (4) and (5) of section three of the Finance (New Duties) Act, 1916, shall apply for the purpose of the duties under this section as they were

6 & 7 Geo. 5.
c. 11.

applied by the said section eight for the purpose of the duties charged thereunder.

PART I.
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5.—(1) As from the twenty-sixth day of April, nineteen hundred and thirty-three, the rate of the duty of customs charged under section six of the Finance Act, 1928, on the importation into the United Kingdom of any mechanical lighter, and of any component part of a mechanical lighter other than a flint, shall be increased to one shilling and sixpence.

Increased
duties on
mechanical
lighters.
18 & 19
Geo. 5. c. 17.

(2) The rate of the duty of excise charged under the said section six on every mechanical lighter manufactured in the United Kingdom which is complete, or which could be made complete by the addition of a flint, shall, as respects every such lighter manufactured on or after the said twenty-sixth day of April, be increased to one shilling, and the rate of the duty of excise charged as aforesaid on every mechanical lighter sent out in an incomplete state from the premises of a manufacturer of mechanical lighters, shall, as respects every such lighter so sent out on or after that date, be increased to one shilling.

(3) Paragraph (d) of subsection (3) of the said section six, and any regulations made thereunder providing for the receipt by licensed manufacturers of mechanical lighters in an incomplete state or of parts of mechanical lighters without payment of duty, shall be deemed to have ceased to have effect as respects customs duty as from the said twenty-sixth day of April, except in so far as they relate to parts of mechanical lighters, being wheels for striking a flint.

6.—(1) As from six o'clock in the evening of the twenty-fifth day of April, nineteen hundred and thirty-three, the rate of the rebate to be allowed under subsection (3) of section two of the Finance Act, 1928, on the delivery for home consumption of any oils other than light oils, shall be reduced from eight pence per gallon to seven pence per gallon.

Amend-
ments as to
duty on
hydrocar-
bon oils.

(2) In the case of all petroleum oils, other than light oils, which were, at six o'clock in the evening of the said twenty-fifth day of April—

(a) in any place in the United Kingdom other than a bonded warehouse or a refinery, or in any

PART I.
—cont.

vessel carrying any such oil from one port or place in the United Kingdom to another; and

- (b) in the ownership or possession of any person who then held a quantity thereof exceeding ten thousand gallons;

a duty of excise at the rate of one penny per gallon shall be charged on the quantity so held in excess of ten thousand gallons.

(3) The provisions of subsections (6), (7) and (8) of section two of the Finance Act, 1928, shall have effect, as extended by section seven of the Finance Act, 1930, for the purpose of the duty of excise charged under this section as they had effect for the purpose of the duty of excise charged under that section, and for the purpose of subsection (2) of this section the expression "refinery" has the meaning assigned to it by subsection (10) of the said section two.

(4) The Commissioners may by regulations direct, as respects such descriptions of hydrocarbon oil as may be specified in the regulations, that any duty charged thereon shall, instead of being charged by reference to gallons, be charged by reference to tons or some other measure of quantity at the rate specified in the regulations, being a rate equivalent to the rate chargeable by reference to gallons.

(5) As from six o'clock in the evening of the said twenty-fifth day of April, any duty charged on hydrocarbon oils shall cease to be charged on oils, being hydrocarbons or bituminous or asphaltic substances, which are solid or semi-solid at a temperature of sixty degrees Fahrenheit.

For the purpose of this subsection, no description of oil shall be deemed to be an oil which is solid or semi-solid at the temperature aforesaid unless it satisfies such tests as the Commissioners may by regulations prescribe as respects that description of oil.

Relief from
duty on
heavy
hydrocar-
bon oils
used as fuel
for vessels
in home
waters.

7.—(1) If, on an application made in the prescribed manner by the owner of a vessel specified in the application, not being a pleasure yacht, it is shown to the satisfaction of the Commissioners that at any time within the period of six months preceding the date of the application, or within such longer period preceding that date as the Commissioners may in any special case

allow, any quantity of hydrocarbon oil, other than light oils, has been used as fuel for the machinery of the vessel while engaged on a voyage in home waters, and that no drawback was allowable on the shipment of the oil, the applicant shall be entitled to obtain from the Commissioners repayment of the amount of any duty which has been paid in respect of the quantity so used, unless that amount is less than five pounds.

(2) Hydrocarbon oil in a bonded warehouse or a refinery, other than light oils, may, on an application made in the prescribed manner by the owner of a vessel specified in the application, not being a pleasure yacht, and on the prescribed security being given, be delivered out without payment of duty to the applicant for use as fuel for the machinery of the vessel while engaged on a voyage in home waters :

Provided that at any time not later than twelve months after any oil has been so delivered, the Commissioners may require the applicant to prove in the prescribed manner that the whole of the oil, or such part thereof as is not on board the vessel or has not been re-landed with the sanction of the proper officer of Customs and Excise, has been used as aforesaid, and if such proof is not furnished to the Commissioners' satisfaction, any duty which, but for the provisions of this subsection, would have been payable on the delivery of the oil shall become payable by the applicant on demand made by the Commissioners in the prescribed manner.

(3) If, where oil has been delivered out of a bonded warehouse or a refinery without payment of duty on an application under this section, any person—

- (a) uses the oil or any part thereof otherwise than as fuel for the machinery of the vessel specified in the application while engaged on a voyage in home waters; or
- (b) re-lands the whole or any part thereof in any place in the United Kingdom without the sanction of the proper officer of Customs and Excise;

he shall be liable to a customs penalty of treble the value of the whole of the oil so delivered (including the duty payable thereon) or two hundred pounds, at the election of the Commissioners, and, in the case of an offence under

PART I.
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paragraph (b) of this subsection, the oil re-landed shall be forfeited.

(4) In this section—

- (a) the expression “owner,” in relation to an application, includes a charterer to whom the vessel specified in the application is demised, or, in a case where the application relates to oil used, or for use, on a vessel while undergoing trials for the purpose of testing her hull or machinery, the builder or other person conducting the trials;
- (b) the expression “prescribed” means prescribed by regulations made by the Commissioners;
- (c) the expression “voyage in home waters” in relation to a vessel means a voyage on which the vessel is at all times either at sea or within the limits of a port as defined for customs purposes under any enactment.

(5) This section shall be deemed to have had effect as from the twelfth day of June, nineteen hundred and thirty-three.

Increase of
excise duty
on British
sparkling
wines.

8.—(1) The excise duty on sweets charged under section six of the Finance Act, 1927, shall, in the case of sparkling sweets, be at the rate of seven shillings and six pence instead of one shilling and six pence for every gallon, and the said duty shall be charged on sweets sent out from the premises of a person who has rendered the sweets sparkling as well as on sweets sent out from the premises of a maker of sweets for sale.

(2) If, in the case of sweets which are sent out from the premises of a person who has rendered the sweets sparkling, it is shown to the satisfaction of the Commissioners that a duty of one shilling and six pence per gallon has been paid, the duty charged under this section shall be reduced by the amount of the duty so paid.

(3) The power of the Commissioners to make regulations under subsection (2) of section six of the Finance Act, 1927, shall include power to make regulations for securing and collecting duty payable under this section, for prohibiting any person from rendering sweets sparkling unless he is acting under the authority of a licence granted by the Commissioners, and for applying to the

rendering of sweets sparkling the provisions of any enactment relating to the brewing of beer.

PART I.
—cont.

(4) This section shall be deemed to have had effect as from the twenty-sixth day of April, nineteen hundred and thirty-three.

9.—(1) The Treasury may, on the recommendation of the Import Duties Advisory Committee and after consultation with the Board of Trade, by order—

Power of
Treasury
to vary silk
duties.

(a) repeal, or reduce the rate or amount of, all or any of the duties, or drawbacks of duties, of customs or excise now charged or allowed on silk or artificial silk or articles made wholly or in part of silk or artificial silk; and

(b) amend or repeal all or any of the provisions of the following enactments, that is to say, sections four and five of, and the Second Schedule to, the Finance Act, 1925, section five of the Finance Act, 1926, and section five of the Finance Act, 1932;

16 & 17
Geo. 5. c. 22.
22 & 23
Geo. 5. c. 25.

and as from the date on which any order so made comes into operation, the said enactments shall have effect subject to the provisions of the order.

(2) After receiving a recommendation from the Committee that a new duty of customs should be charged (whether in addition to or in substitution for any duty theretofore chargeable or otherwise) on silk or artificial silk of any class or description or on articles of any class or description made wholly or in part of silk or artificial silk, the Treasury may, after consultation with the Board of Trade, by order direct that such duty of customs as is specified in the order (being a duty at a rate not exceeding the rate specified in the recommendation) shall be charged on the importation into the United Kingdom of goods of all or any of the classes or descriptions specified in the recommendation, and a duty so directed to be charged shall for all purposes be deemed to be chargeable under this section.

(3) In deciding what recommendation, if any, to make for the purposes of the foregoing provisions of this section, the Committee shall have regard to the considerations mentioned in subsection (2) of section three of the Import Duties Act, 1932.

22 & 23
Geo. 5. c. 8.

PART I.
—cont.

(4) An order made under this section directing a new duty to be charged may direct that it shall be charged—

- (a) by reference to value or to weight or any other measure of quantity;
- (b) for any period or periods, whether continuous or not, or without any limit of period;
- (c) at different rates for different periods or parts of periods;

and any such order may direct that any of the provisions relating to a duty of customs contained in Part III of the Second Schedule to the Finance Act, 1925, shall apply to the new duty subject to such modifications (if any) as may be specified in the order.

9 & 10 Geo. 5.
c. 32. (5) In the case of goods being Empire products within the meaning of subsection (1) of section eight of the Finance Act, 1919, a new duty chargeable under this section shall, subject to the provisions of subsection (1) of section seven of the Finance Act, 1926, be charged at the preferential rate of five-sixths of the full rate.

(6) Section nineteen of the Import Duties Act, 1932, shall apply to an order made under the foregoing provisions of this section as it applies to an order made under that Act, except that the reference to an additional duty in subsection (5) thereof shall be construed as including a reference to a new duty chargeable under this section.

(7) Section nine of the Import Duties Act, 1932 (which relates to returns as respects the manufacture of goods which, if imported into the United Kingdom, would be chargeable with duty under Part I of that Act), and the Second Schedule to that Act and section nine of the Finance Act, 1932 (which relate to drawback), shall have effect as if references to a duty of customs chargeable under Part I of that Act included references to a new duty chargeable under this section:

Provided that any order made under the said Second Schedule and any scheme made under section nine of the Finance Act, 1932, as respects a drawback of a new duty chargeable under this section may apply to the drawback any of the provisions relating to drawback contained in Part III of the Second Schedule to the

Finance Act, 1925, subject to such modifications (if any) as may be specified in the order or scheme.

PART I.
—*cont.*

10.—(1) Subject to such conditions as the Commissioners may prescribe for the protection of the revenue, where it is shown to the satisfaction of the Commissioners—

Repayment of customs duty where goods returned by importer.

(a) that goods were imported into the United Kingdom in pursuance of a contract of sale, and that the description, quality, state or condition of the goods was not in accordance with the contract or that the goods were damaged in transit; and

(b) that the importer, with the consent of the seller, returned the goods unused to the seller and for that purpose entered the goods before shipment;

the importer shall be entitled to obtain from the Commissioners repayment of any duty of customs paid on the importation of the goods.

(2) Nothing in this section shall apply to goods imported on approval or “on sale or return” or other similar terms.

11. No customs duties shall be charged on the importation of articles which are shown to the satisfaction of the Commissioners to have been awarded abroad to any person for distinction in art, literature, science, or sport, or for public service, or otherwise as a record of meritorious achievement or conduct, and to be imported by or on behalf of that person.

Exemption from customs duties of prizes, &c., awarded abroad.

12. Sections fifteen and sixteen of the Import Duties Act, 1932 (which make provision for the valuation of imported goods for the purposes of that Act), shall have effect for the purposes of any other enactment whereunder a duty of customs is chargeable on any goods by reference to their value as they have effect for the purposes of that Act.

Valuation of goods for purpose of all ad valorem duties.

13.—(1) With a view to enabling effect to be given to an agreement regarding commercial relations embodied in an exchange of notes dated the thirteenth day of April, nineteen hundred and thirty-three, between His Majesty's Government in the United Kingdom and the Government of the German Reich, the duties of customs

Reduction of certain duties under s. 3 of 15 & 16 Geo. 5. c. 36.

PART I.
—*cont.*

charged under section three of the Finance Act, 1925, on articles of the descriptions specified in the first column of the Fourth Schedule to this Act shall, as from the eighth day of May, nineteen hundred and thirty-three, instead of being an amount equal to thirty-three and one-third per cent. of the value of the article, be an amount equal to the percentage of the value of the article specified in relation thereto in the second column of the said Schedule.

(2) Subject to the provisions of this subsection, the Treasury may, on the recommendation of the Board of Trade, by order direct as respects articles of all or any of the descriptions aforesaid that, as from such date as may be specified in the order, the duties of customs charged under the said section three shall again be an amount equal to thirty-three and one-third per cent. of the value of the articles, either in the case of articles wheresoever manufactured, or in the case of articles manufactured elsewhere than in countries to which the order is expressed to apply, and as from that date subsection (1) of this section shall cease to have effect, or have effect subject to the provisions of the order, as the case may be :

Provided that no order shall be made under this section unless the Treasury are satisfied that it can be made without contravention of any agreement regarding commercial relations which is for the time being binding on His Majesty's Government in the United Kingdom.

(3) For the purpose of an order made under this section which is expressed to apply to any particular countries, the Board of Trade may make regulations prescribing, either generally or in relation to articles of any particular description, that articles which fulfil such conditions as may be specified in the regulations shall be treated as having been manufactured in any of those countries, or partly in one and partly in another of those countries, and the Commissioners may in any case require an importer to furnish, in such form as they may prescribe, proof that the conditions so prescribed by the Board have been fulfilled, and if such proof is not furnished to the Commissioners' satisfaction, the articles shall be deemed not to be articles so manufactured.

(4) An order made under this section which is expressed to apply to any particular countries may be varied as respects the countries to which it applies by a subsequent order made in the like manner and subject to the like provisions.

PART I.
—*cont.*

(5) Subsections (1) to (4) of section nineteen of the Import Duties Act, 1932, shall apply to an order made under this section as if it were an order made by the Treasury under that Act.

14.—(1) Where, having regard to any agreement regarding commercial relations entered into between His Majesty's Government in the United Kingdom and the Government of any foreign country, it appears to the Treasury, on the recommendation of the Board of Trade, to be expedient so to do, the Treasury may by order direct, in relation to any class or description of goods on which the general ad valorem duty, or an additional duty, is chargeable under Part I of the Import Duties Act, 1932, that, in the case either—

Power to
repeal or re-
duce duties
under
22 & 23
Geo. 5. c. 8
having
regard to
commercial
agreements.

- (a) of goods of that class or description wheresoever grown, produced or manufactured; or
- (b) of goods of that class or description grown, produced or manufactured in any countries to which the order is expressed to apply, or manufactured partly in one and partly in another of any such countries;

those duties, or either of them, shall not be charged or shall be charged at such reduced rate as may be specified in the order.

(2) The provisions of subsection (3) of the last foregoing section shall have effect for the purpose of any order made under this section which is expressed to apply to any particular countries as it has effect for the purpose of any such order made under that section.

(3) Section nineteen of the Import Duties Act, 1932, shall apply to an order made under this section as if it were an order made by the Treasury under that Act.

(4) Section seven of the Import Duties Act, 1932, shall cease to have effect.

15.—(1) Subsection (1) of section eight of the Finance Act, 1919 (which relates to preferences in the case of

Amend-
ments as to

PART I.

—cont.

imperial
preference.

certain Empire products), shall have effect subject to the following amendments—

(a) for the definition of the expression “ the British Empire ” (including the proviso thereto) there shall be substituted the definition of that expression contained in section twenty-one of the Import Duties Act, 1932;

(b) for the words “ is the result of labour within the British Empire ” there shall be substituted the words “ is derived from expenditure of a kind “ so prescribed which has been incurred in the “ British Empire or the United Kingdom in “ respect of materials grown or produced or “ work done in the British Empire or the “ United Kingdom.”

22 & 23
Geo. 5. c. 53.

(2) Section six of, and the Third Schedule to, the Import Duties Act, 1932, and subsection (7) of section two of the Ottawa Agreements Act, 1932 (which make provision for ascertaining whether goods are to be deemed for the purpose of those Acts to have been grown, produced or manufactured in a part of the British Empire), shall cease to have effect, and the provisions set out in the Fifth Schedule to this Act shall have effect in lieu thereof.

(3) Subsection (4) of section four of the Import Duties Act, 1932 (which provides that goods consigned from certain countries shall be treated for the purposes of preference under that Act as not having been consigned from a part of the British Empire), shall cease to have effect.

Substitution
of a specific
duty for
general ad
valorem
duty.

16.—(1) If it appears to the Import Duties Advisory Committee that, in the case of goods of any class or description which are chargeable, or which it is apprehended will shortly become chargeable, with the general ad valorem duty under Part I of the Import Duties Act, 1932, a duty chargeable by reference to weight or other measure of quantity could be levied with greater advantage and convenience than the general ad valorem duty, the Committee may recommend to the Treasury that a duty so chargeable should be charged in lieu of the general ad valorem duty at such rate as may be specified in the recommendation, notwithstanding that the duty so recommended may be equivalent to a duty

of more or less than ten per cent. of the value of some of the goods falling within that class or description :

PART I.
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Provided that the rate of a duty recommended to be charged under this section shall be such rate as appears to the Committee to be approximately equivalent to ten per cent. of the current average import value of goods of the class or description in question, and in the case of goods the value of which is subject to seasonal variations, a separate rate may be recommended for each part of the year in respect of which it appears to the Committee to be necessary, having regard to those variations, to make separate provision.

(2) The Treasury, after receiving a recommendation under the last foregoing subsection, may, after consultation with the appropriate Department, by order direct that such duty of customs as is specified in the recommendation shall be charged under this section, in lieu of the general ad valorem duty, on the importation into the United Kingdom of goods of the class or description so specified, and references in any enactment to the general ad valorem duty or to duty chargeable under the Import Duties Act, 1932, or under Part I thereof, shall, unless the context otherwise requires, be deemed to include, in relation to such goods, a reference to the duty chargeable under this section :

Provided that no order made under this section as respects goods which are not chargeable with the general ad valorem duty at the date when the order is made shall have effect until the date on which that duty would otherwise have become chargeable thereon.

(3) Subject to the provisions of this subsection, the Committee may at any time recommend to the Treasury that an order made under this section should be revoked, or may from time to time, for the purpose of securing that the rate of duty chargeable on goods of any class or description under this section shall continue to be approximately equivalent to ten per cent. of the current average import value of goods of that class or description, recommend to the Treasury that the rate of the duty so chargeable should be varied, and the Treasury may by order give effect to any such recommendation :

Provided that no recommendation shall be made under this subsection in relation to goods of any class or description before the expiration of six months from

PART I.
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the date when a recommendation was previously made under this section in relation to goods of that class or description.

(4) Subsections (1), (2) and (4) of section nineteen of the Import Duties Act, 1932, shall apply to an order made under this section as if it were an order made by the Treasury under that Act imposing a duty of customs.

(5) In this section the expression “appropriate Department” has the same meaning as in the Import Duties Act, 1932.

(6) Section seventeen of the Import Duties Act, 1932, shall cease to have effect, and section eighteen of that Act shall cease to have effect as respects any duty chargeable under Part I of that Act.

Amendment
as to addi-
tional duties
under 22 &
23 Geo. 5.
c. 8.

17. Where, in any order made (whether before or after the commencement of this Act) under section three or section nineteen of the Import Duties Act, 1932, the rate of an additional duty charged on goods of any class or description is stated to be such rate as will, with the general ad valorem duty, amount to a rate specified in the order as being chargeable by reference to weight or any other measure of quantity, then, if duty is paid in respect of any goods of that class or description at the rate so specified, both the general ad valorem duty and the additional duty shall be deemed to have been paid in respect of those goods, notwithstanding that the amount of the duty paid is equivalent to less than ten per cent. of the value of the goods.

Application
to em-
broidered
goods of
22 & 23
Geo. 5. c. 8.
s. 14.

18.—(1) Where goods to which this section applies, being goods chargeable with a duty of customs under Part I of the Import Duties Act, 1932, are re-imported into the United Kingdom after exportation therefrom, and it is shown to the satisfaction of the Commissioners that they have been subjected abroad to a process of embroidery, but to no other process whereby their form or character has been changed, the provisions of section fourteen of that Act relating to goods which have been subjected to a process abroad, but of which the form or character has not been changed, shall apply to the goods, notwithstanding that on re-importation they fall within a class or description of goods different from that within which they fell on exportation.

(2) The goods to which this section applies are goods made wholly or partly of cotton, wool (including alpaca, mohair, cashmere, llama, vicuna and camels' hair), hemp of any kind, flax or jute.

PART I.
—cont.

(3) The foregoing provisions of this section shall be deemed to have had effect as from the twenty-sixth day of April, nineteen hundred and thirty-three.

(4) The Treasury, on the recommendation of the Import Duties Advisory Committee, and after consultation with the Board of Trade, may at any time by order direct that, as from such date as may be specified in the order, this section shall no longer apply to such of the goods aforesaid as are so specified, or shall no longer apply to any of the goods aforesaid, and as from that date this section shall have effect subject to the provisions of the order, or cease to have effect, as the case may be.

19.—(1) The following provisions of this section shall have effect as respects goods to which the provisions of section fourteen of the Import Duties Act, 1932, relating to goods which are re-imported into the United Kingdom after having been subjected to a process abroad, but of which the form or character has not been changed, would apply but for the fact that on re-importation the goods fall within a class or description different from that within which they fell on exportation.

Extension
of 22 & 23
Geo. 5. c. 8.
s. 14 as
respects
goods sub-
jected to a
process
abroad.

(2) The Import Duties Advisory Committee may recommend as respects any such goods, being goods which on exportation fall within a class or description specified in the recommendation and which are subjected abroad to a process so specified—

- (a) that the provisions aforesaid of the said section fourteen shall apply to the goods notwithstanding that on re-importation they fall within a class or description of goods different from that within which they fell on exportation; or
- (b) that the said provisions shall apply as aforesaid subject to this modification, that the duty chargeable on re-importation shall be the sum by which the amount of the duty which would have been chargeable on the goods, if they were then being imported into the United Kingdom without having been exported therefrom, exceeds

PART I.
—cont.

the amount of the duty which would have been chargeable thereon, if, being goods consigned from and grown, produced or manufactured in the country in which the process was carried out, they had been imported on the date of their exportation in the state in which they were exported.

(3) On receiving a recommendation from the Committee under this section, the Treasury may, after consultation with the Board of Trade, by order direct that the provisions aforesaid of the said section fourteen shall, as from such date as may be specified in the order, apply in accordance with the recommendation, and section nineteen of the said Act shall apply to any such order as if it were an order, other than an order imposing a duty of customs, made by the Treasury under the said Act.

Miscellaneous
amendments as to
goods dutiable
under
15 & 16
Geo. 5. c. 36.
s. 3 and
11 & 12
Geo. 5. c. 47.

20.—(1) The provisions of Part I of the Sixth Schedule to this Act shall have effect as respects any duty of customs chargeable under section three of the Finance Act, 1925, on goods imported with a view to exportation and on re-imported goods, and the provisions of Part II of that Schedule shall have effect as respects any duty of customs chargeable on such goods under the Safeguarding of Industries Act, 1921.

(2) Section nine of the Import Duties Act, 1932 (which relates to returns as respects the manufacture of goods which, if imported into the United Kingdom, would be chargeable with duty under Part I of that Act) shall have effect as if references to a duty of customs chargeable under that Part of that Act included references to a duty of customs chargeable under section three of the Finance Act, 1925, and a duty of customs chargeable under the Safeguarding of Industries Act, 1921.

Deduction
from duty
repaid under
15 & 16
Geo. 5. c. 36.
s. 3.
5 & 6 Geo. 5.
c. 89.

21. Where the amount of the duty paid under section three of the Finance Act, 1925, on any article imported on or after the twenty-sixth day of April, nineteen hundred and thirty-three, is repayable as provided by subsection (3) of section thirteen of the Finance (No. 2) Act, 1915, as applied for the purposes of the said section three, the amount repayable shall be reduced by a sum equal to the amount of any duty which would

have been chargeable on the article under the Import Duties Act, 1932, if the first-mentioned duty had not been paid.

PART I.
—*cont.*

22. Notwithstanding anything in the First Schedule to the Finance (1909–10) Act, 1910, with respect to the minimum quantity of spirits which may in England be sold by a person holding the off-licence to be taken out by a retailer of spirits, a person holding such a licence, being a licence granted to him under the authority of a justices' licence, may sell a quantity of spirits equal to one reputed pint bottle, if it is sold in a single container.

Sale of spirits in reputed pint bottles.

23.—(1) Notwithstanding anything in section ninety-five of the Spirits Act, 1880, British liqueurs and perfumed spirits may be warehoused in accordance with that section for home consumption, and accordingly the words “ medicinal spirits or tinctures other than perfumed spirits ” shall be substituted—

Removal of certain restrictions on warehousing British compounded spirits.

(a) for the words “ British liqueurs or tinctures or medicinal spirits ” in subsection (1) of the said section ninety-five and in section seventy-four of the said Act; and

43 & 44 Vict. c. 24.

(b) for the words “ British liqueurs, tinctures, or medicinal spirits ” in subsection (2) of the said section ninety-five.

(2) Subsection (4) of the said section ninety-five (which imposes a limit on the strength of British compounds warehoused for home consumption) shall cease to have effect.

24. For the purpose of subsection (9) of section one hundred and five of the Spirits Act, 1880 (which relates to the accuracy of the description of spirits in a permit or certificate), spirits described as Scotch whisky shall not be deemed to correspond to that description unless they have been obtained by distillation in Scotland from a mash of cereal grains saccharified by the diastase of malt and have been matured in a bonded warehouse in casks for a period of at least three years.

Amendment as to permits and certificates accompanying spirits.

25. As from the first day of January, nineteen hundred and thirty-four, section thirteen of the Finance Act, 1920 (which imposes duties of excise in respect of mechanically propelled vehicles), shall have effect as

Alteration of duties on licences for certain mechanically

PART I.
—cont.propelled
vehicles.10 & 11
Geo. 5. c. 18.

if the paragraphs set out in Parts I, II and III of the Seventh Schedule to this Act were respectively substituted for paragraphs 3, 4 and 5 of the Second Schedule to that Act:

Provided that, as respects a vehicle used solely within the area of a local authority by that local authority, or by any person acting in pursuance of a contract with that local authority, for the purpose of cleansing or watering roads or cleansing gullies, the said section thirteen shall continue to have effect as if this section had not been enacted.

Period of
licence in
case of
special me-
chanically
propelled
vehicles.

11 & 12
Geo. 5. c. 32.20 & 21
Geo. 5. c. 43.

26.—(1) The minimum period prescribed by order under section twenty-two of the Finance Act, 1921 (which provides for the taking out of licences in respect of certain mechanically propelled vehicles for periods of the year), may be shorter in the case of vehicles to which this section applies than in the case of other vehicles.

(2) This section applies to vehicles which—

(a) are authorised to be used on roads by virtue of an order made under section three of the Road Traffic Act, 1930; and

(b) exceed such weight (not being less than eleven tons) as may be prescribed by order made under the said section twenty-two; and

(c) are chargeable with duty under paragraph 5 of the Second Schedule to the Finance Act, 1920.

(3) This section shall come into operation on the first day of January, nineteen hundred and thirty-four.

PART II.

INCOME TAX.

Income tax
for 1933–34.

27.—(1) Income tax for the year 1933–34 shall be charged at the standard rate of five shillings in the pound, and, in the case of an individual whose total income from all sources exceeds two thousand pounds, at such higher rates in respect of the excess over two thousand pounds as Parliament may hereafter determine.

(2) All such enactments as had effect with respect to the income tax charged for the year 1932–33 shall

have effect with respect to the income tax charged for the year 1933-34.

PART II.
—*cont.*

28. Income tax for the year 1932-33 shall be charged, in the case of an individual whose total income from all sources exceeded two thousand pounds, at the same higher rates in respect of the excess over two thousand pounds as were charged for the year 1931-32.

Higher rates of income tax for 1932-33.

29. Section eight of the Finance Act, 1931 (which amended the amount of the instalments payable under subsection (2) of section one hundred and fifty-seven of the Income Tax Act, 1918), shall cease to have effect as respects tax for the year 1933-34 and subsequent years, and the said subsection (2) shall have effect as respects tax for those years as it had effect as respects tax for the year 1930-31.

Amendment as to payment of tax by instalments.
21 & 22 Geo. 5. c. 28.
8 & 9 Geo. 5. c. 40.

30.—(1) Section twenty-eight of the Finance Act, 1923 (which relates to the allowance for repairs and which was continued in force by section twenty of the Finance Act, 1928, until the fifth day of April, nineteen hundred and thirty-three), shall continue in force until the fifth day of April, nineteen hundred and thirty-six.

Continuance of allowance for repairs under
13 & 14 Geo. 5. c. 14.
s. 28.

(2) This section shall be deemed to have had effect as from the sixth day of April, nineteen hundred and thirty-three.

31.—(1) In the application to any company or society of any provision or rule relating to profits or gains chargeable under Case I. of Schedule D (which relates to trades) or under Rule 4 of the Rules applicable to Case III. of Schedule D (which relates to the profits of certain cattle dealers and milk dealers) any reference to profits or gains shall be deemed to include a reference to a profit or surplus arising from transactions of the company or society with its members which would be included in profits or gains for the purposes of that provision or rule if those transactions were transactions with non-members, and the profit or surplus aforesaid shall be determined for the purposes of that provision or rule on the same principles as those on which profits or gains arising from transactions with non-members would be so determined.

Charge of tax on mutual profits and repeal of
8 & 9 Geo. 5. c. 40. s. 39
(4).

(2) Subsection (4) of section thirty-nine of the Income Tax Act, 1918 (which exempts certain registered

PART II. societies from income tax under Schedules C and D),
—*cont.* shall cease to have effect.

(3) It is hereby declared that in computing, for the purposes of any provision or rule mentioned in subsection (1) of this section, any profits or gains of a company or society which include any income which is chargeable to tax by virtue of the foregoing provisions of this section, there are to be deducted as expenses any sums which—

- (a) represent a discount, rebate, dividend, or bonus granted by the company or society to members or other persons in respect of amounts paid or payable by or to them on account of their transactions with the company or society, being transactions which are taken into account in the said computation; and
- (b) are calculated by reference to the said amounts or to the magnitude of the said transactions and not by reference to the amount of any share or interest in the capital of the company or society.

(4) A registered society whose business consists mainly in the making of investments, and the principal part of whose income is derived therefrom, shall be entitled to relief under section thirty-three of the Income Tax Act, 1918 (which relates to relief in respect of expenses of management), in the same manner and to the same extent as if the business of the society were the business of a company.

(5) Where the profits or gains of a company or society include any income which is chargeable to tax by virtue of the provisions of subsection (1) or subsection (2) of this section, but is not otherwise chargeable to tax, the following transitional provisions shall have effect:—

- (a) where the computation of profits or gains is required to be made by reference to any year or period other than the year of assessment, the computation for that year or period shall be made in accordance with the provisions of subsection (1) of this section, notwithstanding that those provisions were not in force in that year or period or some part thereof;

PART II.
—cont.

(b) where a claim is made for a deduction in respect of the wear and tear or replacement of any machinery or plant under Rule 6 or Rule 7 of the Rules applicable to Cases I. and II. of Schedule D, paragraph (6) of the said Rule 6, and the said Rule 7, shall have effect as if there had been allowed, for all years of assessment prior to the year 1933–34, all such deductions for wear and tear (but not including any additional allowance under section eighteen of the Finance Act, 1932) as would have been allowable in charging profits or gains which would have been chargeable if subsections (1) and (2) of this section had been in force throughout those years; and, in computing the amount of profits or gains to be charged, no sum shall be deducted (otherwise than under the said Rule 7) in respect of the cost of the renewal or replacement of any machinery or plant exceeding the amount of such cost reduced by the total amount of all such deductions for wear and tear as would have been allowable as aforesaid;

(c) no deduction shall be carried forward from the year 1932–33 under paragraph (3) of the said Rule 6 and no loss, or portion of a loss, which was sustained before the sixth day of April, nineteen hundred and thirty-three, shall be carried forward under or by reference to section thirty-three of the Finance Act, 1926, except so far as the deduction or loss, or portion of a loss, as the case may be, related to transactions any profits or gains from which were chargeable with tax for the said year 1932–33 or previous years.

(6) Where any profits or income of a registered society arising in the year 1933–34 have, by virtue of the provisions of this section, ceased to be exempt from income tax chargeable by deduction and the tax has not been deducted therefrom, an assessment may be made on the society under Case III. of Schedule D as if the profits or income were mentioned in Rule 1 of the Rules applicable to that Case and first arose in the said year.

(7) In this section the expression “company or society” means any incorporated company or society

PART II.
—*cont.*

whether incorporated in the United Kingdom or elsewhere, and the expression “registered society” means a society registered under the Industrial and Provident Societies Acts, 1893 to 1928, or under the enactments in force in Northern Ireland known as the Industrial and Provident Societies Acts (Northern Ireland), 1893 to 1929.

Payment of
loan and
share
interest of
registered
societies
without
deduction
of tax.

32.—(1) Notwithstanding anything contained in the Income Tax Acts, any share interest or loan interest paid by a registered society shall be paid without deduction of income tax:

Provided that this subsection—

(a) shall not apply to any share interest or loan interest payable to a person whose usual place of abode is not within the United Kingdom; and

(b) shall not render improper any such deduction made before the first day of October, nineteen hundred and thirty-three, which would have been a proper deduction if this subsection had not been enacted.

(2) Any share interest or loan interest paid by a registered society without deduction of income tax shall be chargeable under Case III. of Schedule D as if it were mentioned in Rule 1 of the Rules applicable to that Case.

(3) Where at any time, by virtue of the last foregoing subsection, the income of a person from any source becomes chargeable as therein provided not having previously been chargeable by direct assessment on that person, the provisions of paragraph (ii) of the proviso to section thirty of the Finance Act, 1926 (which relates to charge of tax where a person acquires a new source of income in any year of assessment), shall apply as if the source of that income were a new source of income acquired by that person at that time.

(4) Subject as hereinafter provided—

(a) a registered society shall be entitled to have the amount of income tax which, but for any relief under this paragraph, it would be liable ultimately to bear for any year of assessment, reduced by a sum representing tax on the amount of share interest

or loan interest paid in that year by the society without deduction of tax in accordance with the foregoing provisions of this section; and

PART II.
—cont.

- (b) where due relief under this subsection cannot be given for any year of assessment in respect of any part of the share interest or loan interest so paid by a society in that year, section nineteen of the Finance Act, 1928 (which relates to allowance for certain purposes of interest payments as losses), shall have effect as if the society had been assessed to tax for that year under Rule 21 of the General Rules in respect of the payment of that part of the share interest or loan interest, and had paid tax under that assessment on the amount of the payment :

Provided that this subsection shall not apply to any loan interest in respect of or by reference to which a deduction or relief is allowable to the society otherwise than under this subsection.

(5) Subsections (1) and (2) of section forty-one of the Finance Act, 1927 (which relate to the making and determination of claims for certain deductions of tax), shall apply to claims for relief under paragraph (a) of the last foregoing subsection as they apply to claims for deductions of tax and as if the Special Commissioners were the commissioners concerned, and any relief due under the said paragraph (a) may be given either by discharge or reduction of any assessment, or by repayment, or by all or any of those means, as the case may require.

(6) On or before the first day of May in each year (commencing with the year nineteen hundred and thirty-four), every registered society shall deliver to the surveyor for the district in which its registered office is situate a return in such form as the Commissioners of Inland Revenue may prescribe, showing—

- (a) the name and place of residence of every person to whom loan interest (being loan interest to which subsection (4) of this section applies) amounting to the sum of five pounds or more

PART II.
—*cont.*

has been paid by the society in the year of assessment which ended next before the said first day of May; and

- (b) the amount of such loan interest paid in that year to each of those persons;

and if such a return is not duly made as respects any year of assessment the society shall not be entitled to any relief under this section in respect of any payments of loan interest which it was required to include in the return, and the amount of any relief or allowance which has been given in respect of any such payments may, if not otherwise made good, be assessed under Case VI. of Schedule D and recovered from the society accordingly.

(7) For the purposes of this section—

- (a) the expression “registered society” has the same meaning as in the last preceding section;
- (b) the expression “share interest,” in relation to a registered society, means any interest, dividend, bonus, or other sum payable to a shareholder of the society by reference to the amount of his holding in the share capital of the society;
- (c) the expression “loan interest,” in relation to a registered society, means any interest payable by the society in respect of any mortgage, loan, loan stock, or deposit;
- (d) references to the payment of share interest or loan interest shall include references to the crediting of such interest.

Power to
carry
forward
expenses in
respect of
which relief
may be
given under
8 & 9 Geo. 5.
c. 40. s. 33.

33. Where, on a claim for relief under section thirty-three of the Income Tax Act, 1918, made by a company, society, or bank for any year of assessment after the year 1932–33 in respect of the sums disbursed by it as expenses of management (including commissions) for that year, relief is disallowed in respect of the whole or part of those sums by reason only of the provisions of proviso (a) to subsection (1) of the said section, the amount in respect of which relief has been so disallowed may be carried forward and treated for the purpose of the said section as if it had been disbursed as aforesaid for any of the six years of assessment next following :

Provided that relief in respect of an amount so carried forward shall be given for the first year of assessment next following, in so far as relief can be so given in accordance with the provisions of the said section in respect of that amount as well as in respect of the sums actually disbursed as aforesaid for that year, and so far as it cannot be so given, then for the next year of assessment, and so on.

PART II.
—cont.

34.—(1) The provisions of this section shall have effect in relation to sur-tax due from any person (in this section referred to as the “beneficiary”) to whom, or for whose benefit, any income or any capital may in the discretion of some other person be paid or applied under a trust.

Recovery of
sur-tax due
from bene-
ficiary under
discretion-
ary trust.

(2) If any sur-tax charged in respect of the income of the beneficiary is not paid before the expiration of six months from the date when it became due and payable, the Special Commissioners may at any time thereafter, so long as the said sur-tax remains unpaid, cause to be served on the trustees of the trust a notice in writing that the said sur-tax remains unpaid.

(3) Where such a notice as aforesaid is served in accordance with the provisions of this section on the trustees of the trust it shall be the duty of the trustees, as soon as may be, and if necessary from time to time, to pay the Commissioners of Inland Revenue in or towards satisfaction of the said sur-tax from time to time remaining unpaid any income or capital which, by virtue of any exercise of the discretion under the trust, the beneficiary may become entitled to receive or to have applied for his benefit.

(4) Any payments made out of income by trustees on account of sur-tax in respect of which a notice under this section has been served shall be deemed for all the purposes of the Income Tax Acts to represent income paid to the beneficiary.

(5) Any sum which the trustees are liable to pay by virtue of the provisions of this section shall be recoverable from them as a debt due to the Crown.

(6) Service of any notice under this section may be effected by sending it by post to the person on whom it is to be served by letter addressed to him at his usual or

PART II.
—cont.

last known place of abode, and, where there are two or more trustees under the trust, the notice shall be deemed to have been validly served upon the trustees if served upon any one of them, but nothing in this section shall render a trustee personally liable for anything done by him in good faith and in ignorance of the fact that such a notice has been served.

PART III.

NATIONAL DEBT.

Provisions
as to per-
manent
annual
charge for
the National
Debt for
1933-34.

35.—(1) The permanent annual charge for the National Debt for the financial year ending on the thirty-first day of March nineteen hundred and thirty-four shall be the sum of two hundred and twenty-four million pounds instead of the sum of three hundred and fifty-five million pounds.

9 & 10
Geo. 5. c. 37.

(2) The Treasury may at any time, if they think fit, raise money in any manner in which they are authorised to raise money under and for the purposes of subsection (1) of section one of the War Loan Act, 1919, for providing any sums required during the financial year ending on the thirty-first day of March nineteen hundred and thirty-four for the purposes mentioned in paragraph (a) or paragraph (b) of subsection (4) of section twenty-three of the Finance Act, 1928, and the amount required by the last mentioned subsection to be issued from the permanent annual charge for the National Debt for the purposes aforesaid in that year shall be decreased by the amount raised under this subsection.

(3) Any securities created and issued to raise money under the last preceding subsection shall be deemed to have been created and issued under subsection (1) of section one of the War Loan Act, 1919.

Amendment
as to deficit
for 1932-33.

36. No issue shall be made out of the Consolidated Fund under section forty-eight of the Finance Act, 1930 (which provides in the case of a deficit in any year for the redemption in the next year of a corresponding amount of debt), in respect of the deficit for the financial year ending on the thirty-first day of March, nineteen hundred and thirty-three.

37. The unexpended balance of the Depreciation Fund established in connection with the Five Per Cent. War Loan, 1929-47, and the Four Per Cent. War Loan, 1929-42, in pursuance of regulations made under section thirty-two of the Finance Act, 1917, shall, at such time as the Treasury may determine, be paid into the Exchequer.

PART III.
—cont.

Transfer to
Exchequer of
balance of
War Loan
Depreciation
Fund.

7 & 8 Geo. 5.
c. 31.

PART IV.

POST OFFICE FUND.

38.—(1) The Postmaster-General shall, on or before the thirty-first day of October in the year nineteen hundred and thirty-four and each succeeding year, cause a statement to be prepared, in such form as the Treasury may direct, showing the amount by which the revenue of the Post Office during the last preceding financial year has exceeded the expenditure on account of the Post Office during that year, and the amount shown in any such statement as respects any financial year is hereafter referred to in this Part of this Act as “the Post Office net surplus” for that financial year.

Ascertain-
ment of
Post Office
net surplus.

(2) For the purpose of any such statement there shall be included in revenue and expenditure respectively such amounts as represent the value of work done without payment by the Post Office for other Government Departments and for the Post Office by other Government Departments, but the net amount received by the Postmaster-General in respect of licences granted under the Wireless Telegraphy Act, 1904, shall not be included in revenue.

4 Edw. 7.
c. 24.

(3) Subject to the provisions of the last foregoing subsection, the revenue of, and expenditure on account of, the Post Office shall be calculated for the purpose of any such statement in such manner as the Treasury may direct, and any amount required to be ascertained for the purpose of that subsection shall be ascertained in such manner as the Treasury may direct.

(4) Any statement prepared under this section shall, as soon as may be, be laid before Parliament.

39.—(1) When it first appears from any statement prepared under this Part of this Act that the Post Office net surplus for the last preceding financial year exceeded the sum of eleven million pounds, then, on the first day of November next following the end of that financial year,

Establish-
ment and
application
of Post
Office Fund.

PART IV.
—cont.

there shall be established a fund to be known as "the Post Office Fund," which shall be under the control of the Postmaster-General.

(2) On the establishment of the Post Office Fund and on the first day of November in every succeeding year there shall be paid into the Post Office Fund out of the Consolidated Fund or the growing produce thereof the amount by which the Post Office net surplus for the last preceding financial year has exceeded the fixed contribution to the Exchequer as hereafter defined.

(3) For the purpose of any calculation required to be made for the purpose of this section as respects the financial year ending next before the establishment of the Post Office Fund and the two following financial years, the fixed contribution to the Exchequer shall be taken to be the sum of ten million seven hundred and fifty thousand pounds, and for the purpose of any calculation so required to be made as respects any subsequent financial year, the fixed contribution to the Exchequer shall be such sum as Parliament may hereafter determine.

(4) Subject to the following provisions of this section, the moneys in the Post Office Fund may be applied from time to time, as the Postmaster-General with the concurrence of the Treasury thinks fit, either for developing, according to estimates approved by the Treasury, the postal, telegraphic and telephonic systems, or as appropriations in aid of moneys provided by Parliament for the salaries and expenses of the Post Office (including telegraphs and telephones):

Provided that no moneys shall be applied as aforesaid if the balance for the time being standing to the credit of the Fund is less than two hundred and fifty thousand pounds, or if the said balance would thereby be reduced to less than that sum.

(5) If the Post Office net surplus for any financial year is less than the fixed contribution to the Exchequer, the deficiency shall be made good to the Exchequer out of the Fund so soon as may be and before any other payment is made thereout.

(6) If it is anticipated during any financial year that the Post Office net surplus for that year will be less than the fixed contribution to the Exchequer, there may, with the consent of the Treasury, be paid from

the Fund to the Exchequer such sum as the Postmaster-General thinks fit on account of the estimated deficiency, but if it is subsequently found that the Post Office net surplus for that year exceeded the fixed contribution to the Exchequer, or that the actual deficiency was less than the sum so paid, the fixed contribution to the Exchequer for the next following financial year shall be reduced by the amount of the sum so paid or by the amount by which that sum exceeded the deficiency, as the case may be.

PART IV.
—cont.

(7) Any moneys in the Post Office Fund may from time to time with the approval of the Treasury be paid over to the National Debt Commissioners and by them invested, in accordance with regulations to be made by the Treasury, in any securities which are for the time being authorised by Parliament as investments for Savings Banks funds.

(8) The Postmaster-General shall cause an account to be prepared and transmitted to the Comptroller and Auditor General for examination on or before the thirty-first day of October in every year after the establishment of the Post Office Fund, showing the receipts of and issues out of the Post Office Fund in the last preceding financial year, and the Comptroller and Auditor General shall certify and report upon the account, and the account and report shall be laid before Parliament on or before the thirty-first day of January in the following year if Parliament is then sitting, or if Parliament is not then sitting, within one week after Parliament has next assembled.

PART V.

MISCELLANEOUS AND GENERAL.

40. Section thirty-six of the Finance Act, 1931, and section twenty-eight of the Finance Act, 1932 (which provide for advances to the Road Fund and for the repayment thereof between the first day of April, nineteen hundred and thirty-five, and the thirty-first day of March, nineteen hundred and forty-one), shall have effect as if in subsection (2) of each of those sections the words "the first day of January, nineteen hundred and thirty-four" were substituted for the words "the first day of April, nineteen hundred and thirty-five."

Repayment
of advances
made to
the Road
Fund.

PART V.
—*cont.*

Reduction
of stamp
duty on
statements
as to capital
of com-
panies, &c.

54 & 55
Vict. c. 39.
59 & 60
Vict. c. 28.

41.—(1) Ten shillings shall be substituted for one pound as the *ad valorem* stamp duty imposed by sections one hundred and twelve and one hundred and thirteen of the Stamp Act, 1891, as extended by section twelve of the Finance Act, 1896, on statements as regards the capital of the companies referred to in those sections.

This subsection shall have effect as respects the capital of any such company as aforesaid which was registered or otherwise incorporated on or after the twenty-sixth day of April, nineteen hundred and thirty-three, and as respects any increase of capital of any such company which was authorised on or after that date.

7 Edw. 7.
c. 24.

(2) Ten shillings shall be substituted for one pound as the *ad valorem* stamp duty imposed by section eleven of the Limited Partnerships Act, 1907, on statements as regards the amount contributed by limited partners to limited partnerships.

This subsection shall have effect as respects any amount or increased amount contributed as aforesaid on or after the twenty-sixth day of April, nineteen hundred and thirty-three.

Effect of
non-com-
pliance with
stamp laws
in case of
certain bills
of exchange.

42. Notwithstanding any enactment to the contrary, a bill of exchange which is presented for acceptance, or accepted, or payable, outside the United Kingdom shall not be invalid by reason only that it is not stamped in accordance with the law for the time being in force relating to stamp duties, and any such bill of exchange which is unstamped or not properly stamped may be received in evidence on payment of the proper duty and penalties as provided by section fourteen and subsection (1) of section fifteen of the Stamp Act, 1891.

Reduction
of rate of
interest on
death
duties.

43.—(1) Section thirty of the Finance Act, 1919 (which amended section eighteen of the Finance Act, 1896, by increasing the rate of interest on death duties from three to four per cent. per annum), shall cease to have effect except as respects interest accruing due before the twenty-sixth day of April, nineteen hundred and thirty-three, and the said section eighteen shall have effect as originally enacted as respects interest accruing due on or after that date.

(2) Subsection (3) of section seventeen of the Law of Property Act, 1925, and subsection (6) of section seventy-three of the Land Registration Act, 1925, shall have effect, as respects interest accruing due on or after the said date, as if for the words "four pounds" there were substituted the words "three pounds."

PART V.

—cont.

15 & 16

Geo. 5.

cc. 20 & 21:

44. Subsection (4) of section thirty-four of the Finance Act, 1922 (which provides for the charging of interest at the rate of four and a half per cent. per annum on excess profits duty), shall, as respects interest accruing due on or after the twenty-sixth day of April, nineteen hundred and thirty-three, have effect as if for the words "four and a half per cent." there were substituted the words "three per cent."

Reduction
of rate of
interest on
excess
profits duty.

12 & 13

Geo. 5. c. 17.

45. Notwithstanding anything in section fifty-three of the Government Annuities Act, 1929, the tables for calculating the amount of savings bank annuities which were approved by the Treasury on the eleventh day of July, nineteen hundred and thirty-two, and published in the London Gazette on the twelfth day of August, nineteen hundred and thirty-two, shall be deemed to have come into operation on the first-mentioned date, and any savings bank annuities granted on or after that date in accordance with the said tables shall be deemed to have been lawfully granted under section forty of that Act.

Date of
operation
of certain
tables for
calculating
annuities.

19 & 20

Geo. 5. c. 29.

46. Any regulations authorised under this Act to be made by the Board of Trade may be made by the President of the Board or in his absence by a Secretary of State, and any other thing required or authorised under this Act to be done by, to, or before the Board of Trade may be done by, to, or before the President of the Board or any person authorised by him in that behalf.

Exercise
of powers
of Board
of Trade
under Act.

47.—(1) This Act may be cited as the Finance Act, 1933.

Short title,
construc-
tion, extent
and repeals.

(2) Part I of this Act, so far as it relates to duties of customs, shall be construed as one with the Customs Consolidation Act, 1876, and so far as it relates to duties of excise shall be construed as one with the Acts which relate to the duties of excise and to the management of those duties and the expression "the Commissioners" in the said Part I and the Schedules to this Act means the Commissioners of Customs and Excise.

39 & 40 Vict.
c. 36.

PART V.
—cont.

(3) Part II of this Act shall be construed as one with the Income Tax Acts.

(4) Any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by any subsequent enactment, including this Act.

(5) In this Act the expression “the United Kingdom” does not include the Isle of Man.

(6) Such of the provisions of this Act as relate to matters with respect to which the Parliament of Northern Ireland has power to make laws shall not extend to Northern Ireland.

(7) The enactments set out in the Eighth Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

DUTIES AND DRAWBACKS ON BEER.

PART I.

RATE OF EXCISE DUTY.

	£	s.	d.
For every 36 gallons of worts of a specific gravity of 1,027 degrees or less - - - - -	1	4	0
For every 36 gallons of worts of a specific gravity exceeding 1,027 degrees—			
For the first 1,027 degrees - - - - -	1	4	0
For every additional degree in excess of 1,027 degrees - - - - -	0	2	0

And so in proportion for any less number of gallons.

PART II.

1st Sch.
—cont.

RATE OF EXCISE DRAWBACK.

For every 36 gallons of beer of an original gravity of	£	s.	d.
1,027 degrees or less - - - - -	1	4	2

For every 36 gallons of beer of an original gravity exceeding 1,027 degrees—

For the first 1,027 degrees - - - - -	1	4	2
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For every additional degree in excess of 1,027 degrees - - - - -	0	2	0
--	---	---	---

And so in proportion for any less number of gallons.

As respects beer of an original gravity of less than 1,027 degrees, the amount of drawback allowable shall not exceed by more than two pence for every thirty-six gallons the amount of duty which is shown to the satisfaction of the Commissioners to have been paid.

PART III.

RATE OF CUSTOMS DUTY.

For every 36 gallons where the worts thereof were before fermentation of a specific gravity of 1,027 degrees or less - - - - -	£	s.	d.
	1	4	5

For every 36 gallons where the worts thereof were before fermentation of a specific gravity exceeding 1,027 degrees—

For the first 1,027 degrees - - - - -	1	4	5
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For every additional degree in excess of 1,027 degrees - - - - -	0	2	0
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And so in proportion for any less number of gallons.

PART IV.

RATE OF CUSTOMS DRAWBACK.

For every 36 gallons of an original gravity of 1,027 degrees or less - - - - -	£	s.	d.
	1	4	2

For every 36 gallons of an original gravity exceeding 1,027 degrees—

For the first 1,027 degrees - - - - -	1	4	2
---------------------------------------	---	---	---

For every additional degree in excess of 1,027 degrees - - - - -	0	2	0
--	---	---	---

And so in proportion for any less number of gallons.

As respects beer of an original gravity of less than 1,027 degrees, the amount of drawback allowable shall not exceed the amount of duty which is shown to the satisfaction of the Commissioners to have been paid less three pence for every thirty-six gallons.

Section 3.

SECOND SCHEDULE.**PROVISIONS TO BE SUBSTITUTED FOR SCALE 2 OF FIRST SCHEDULE TO THE FINANCE (1909-10) ACT, 1910.****SCALE 2.***Licence to Brewer for Sale.*

	£	s.	d.
Number of bulk barrels brewed during the preceding year:—			
Not exceeding 100 barrels - - - - -	1	0	0
Exceeding 100 barrels:—			
For the first 100 barrels - - - - -	1	0	0
For every further 50 barrels or fraction of 50 barrels - - - - -	0	8	0
For the purposes of this scale, the expression "bulk barrel" means a quantity of thirty-six gallons.			

Section 4.

THIRD SCHEDULE.**RATES OF CUSTOMS DUTIES ON MATCHES.**

	s.	d.
Containers in which there are not more than 10 matches—		
For every 1,000 such containers - - - - -	6	8
Containers in which there are more than 10 matches, but not more than 20 matches—		
For every 1,000 such containers - - - - -	13	4
Containers in which there are more than 20 matches, but not more than 50 matches—		
For every 144 such containers - - - - -	4	9
In respect of every additional 25 matches, or part of 25 matches, over 50 in a container—		
For every 144 such containers, an additional duty of	2	5
And so in proportion for any less number of containers.		

FOURTH SCHEDULE.

Section 13.

REDUCED RATE OF DUTY CHARGEABLE ON CERTAIN MUSICAL INSTRUMENTS, CLOCKS, &C.

Description of Goods.	Reduced rate of duty.
Pianos, non-automatic; and component parts and accessories thereof - - - - -	20 per cent.
Piccolos, flutes, clarinets, flageolets, bassoons and cornets; and component parts and accessories thereof - - - - -	20 per cent.
Stringed musical instruments; and component parts and accessories thereof - - - - -	20 per cent.
Gramophones without electrical amplification, of a value not exceeding 10s. each - - - - -	15 per cent.
Gramophones without electrical amplification, of a value exceeding 10s. each - - - - -	20 per cent.
Concertinas (including accordions) of a value not exceeding 35s. each - - - - -	15 per cent.
Concertinas (including accordions) of a value exceeding 35s. each - - - - -	20 per cent.
Mouth organs - - - - -	10 per cent.
Clocks, alarm (other than electric clocks) of a value not exceeding 30s. each - - - - -	20 per cent.
Clocks (other than electric or alarm clocks) of a value not exceeding 30s. each - - - - -	25 per cent.
Clock movements complete (other than movements of electric clocks), of a value not exceeding 15s. each - - - - -	25 per cent.

FIFTH SCHEDULE.

Section 15.

PROVISIONS FOR DETERMINING FOR PURPOSES OF PRE- FERENCE UNDER 22 & 23 GEO. 5. CC. 8 AND 53 WHETHER GOODS ARE GROWN, PRODUCED OR MANU- FACTURED IN A PART OF THE BRITISH EMPIRE.

1. For the purposes of any provision of the Import Duties Act, 1932, or the Ottawa Agreements Act, 1932, which provides for the exemption of goods manufactured in a country or territory in the British Empire from any duty chargeable under either of

5TH SCH.
—cont.

those Acts, or for the charge of any such duty in the case of such goods at a rate less than the full rate, goods shall not be deemed to be manufactured in any such country or territory unless such proportion of their value as is prescribed by regulations made by the Board of Trade is derived from expenditure of a kind so prescribed which has been incurred within that country or territory in respect of materials grown or produced or work done in that country or territory :

Provided that in reckoning the proportion aforesaid, there shall be included any expenditure of a kind prescribed as aforesaid which has been incurred within any of the countries and territories to which this proviso applies, being expenditure in respect of materials grown or produced or work done in any of those countries and territories.

2. The countries and territories to which the proviso to the last foregoing paragraph applies are—

- (a) the United Kingdom ;
- (b) any country the Government of which is a party to one of the agreements set out in the First Schedule to the Ottawa Agreements Act, 1932, for the time being in force ;
- (c) any territory in respect of which a mandate of the League of Nations is being exercised by, or which is administered under the authority of, the Government of a country specified in sub-paragraph (b) of this paragraph ;
- (d) any part of His Majesty's dominions outside the United Kingdom other than a Dominion within the meaning of the Statute of Westminster, 1931, India or Southern Rhodesia ;
- (e) any territory which is under His Majesty's protection ;
- (f) any territory in relation to which an Order in Council made under subsection (2) of section five of the Import Duties Act, 1932, is in force.

3. For the purpose of this Schedule, the value of any goods shall, notwithstanding anything in any other enactment, be taken to be their value as ascertained in accordance with regulations made by the Board of Trade under this Schedule.

4. It shall be lawful for the Commissioners on the importation of any goods consigned from any part of the British Empire which, if grown, produced or manufactured in any particular country or territory therein would, under any provision of the Import Duties Act, 1932, or the Ottawa Agreements Act, 1932, be exempt from a duty chargeable under either of those Acts or be chargeable with such a duty at a rate less than the full rate,

to require the importer to furnish to the Commissioners, in such form as they may prescribe, proof that the goods were grown, produced or manufactured in that country or territory, and if such proof is not furnished to their satisfaction (having regard, in the case of manufactured goods, to the foregoing provisions of this Schedule) the goods shall be deemed not to be goods so grown, produced or manufactured.

5TH SCH.
—cont.

5. In this Schedule the expression "the British Empire" has the same meaning as in the Import Duties Act, 1932.

SIXTH SCHEDULE.

Section 20.

PROVISIONS AS TO RE-IMPORTATION AND RE-EXPORTATION OF CERTAIN GOODS.

PART I.

PROVISIONS AS TO DUTIES CHARGEABLE UNDER 15 & 16 GEO. 5. c. 36. s. 3.

1. Section thirteen of the Import Duties Act, 1932 (which exempts from duty chargeable under that Act goods imported with a view to re-exportation) shall apply to any duty chargeable under section three of the Finance Act, 1925, other than the duty chargeable on cinematograph films, as it applies to any duty chargeable under the first mentioned Act.

2. Where it appears to the Commissioners—

- (a) that any article (other than a cinematograph film) chargeable with duty under the said section three was produced abroad by means of some process from an article exported from the United Kingdom and that consequently the case does not fall within the provisions of section eleven of the Finance Act, 1925, but that the process has not changed the form or character of the article; and
- (b) in a case where the article so exported was first imported into the United Kingdom, that any duty chargeable on the importation thereof was paid, and either that no drawback of any such duty was allowed on exportation or that any drawback so allowed has been repaid to the Exchequer;

6TH SCF.
—cont.

the article shall be chargeable with duty under the said section three in accordance with the provisions of paragraph (b) of section fourteen of the Import Duties Act, 1932.

PART II.

PROVISIONS AS TO DUTIES UNDER 11 & 12 GEO. 5. c. 47.

1. Section thirteen of the Safeguarding of Industries Act, 1921 (which exempts transit goods from duty under that Act) shall have effect as if there were inserted at the end thereof the words “or to goods imported solely with a view to the “ exportation thereof after undergoing a process in the United “ Kingdom which will not change the form or character of the “ goods.”

2. Where it appears to the Commissioners—

- (a) that any article chargeable with duty under the said Act was produced abroad by means of some process from an article exported from the United Kingdom and that consequently the case does not fall within the provisions of subsection (2) of section twelve of the said Act but that the process has not changed the form or character of the article; and
- (b) in a case where the article so exported was first imported into the United Kingdom, that any duty chargeable on the importation thereof was paid, and either that no drawback of any such duty was allowed on exportation or that any drawback so allowed has been repaid to the Exchequer;

the article shall be chargeable with duty under the said Act in accordance with the provisions of paragraph (b) of section fourteen of the Import Duties Act, 1932.

SEVENTH SCHEDULE.

Section 25.

AMENDED RATES OF DUTY IN THE CASE OF CERTAIN
MECHANICALLY-PROPELLED VEHICLES.

PART I.

PARAGRAPH TO BE SUBSTITUTED FOR PARAGRAPH 3 OF THE
SECOND SCHEDULE TO THE FINANCE ACT, 1920.

Description of vehicles.	Rate of duty.	
3.—(a) Hackney carriages being tramcars	15s.	
(b) Hackney carriages (other than tramcars) which are propelled by steam, or which are electrically propelled, or which are constructed or adapted to use coal gas as fuel, or which are not constructed or adapted to use as fuel any fuel other than light oils :—	Vehicles fitted entirely with pneumatic tyres.	Other vehicles.
Having a seating capacity for :—	£ s. d.	£ s. d.
Not more than 4 persons	10 0 0	10 0 0
More than 4 but not more than 8 persons	12 0 0	12 0 0
More than 8 but not more than 14 persons	24 0 0	30 0 0
More than 14 but not more than 20 persons	36 0 0	45 0 0
More than 20 but not more than 26 persons	48 0 0	60 0 0
More than 26 but not more than 32 persons	57 12 0	72 0 0
More than 32 but not more than 40 persons	67 4 0	84 0 0
More than 40 but not more than 48 persons	76 16 0	96 0 0
More than 48 but not more than 56 persons	86 8 0	108 0 0
More than 56 but not more than 64 persons	96 0 0	120 0 0
More than 64 persons—		
For the first 64 persons	96 0 0	120 0 0
For each additional person in excess of 64	1 4 0	1 10 0

7TH SCH.
—cont.

Description of vehicles.	Rate of duty.					
	Vehicles fitted entirely with pneumatic tyres.			Other vehicles.		
(c) Hackney carriages not chargeable with duty under the foregoing provisions of this paragraph :—						
Having a seating capacity for :—	£	s.	d.	£	s.	d.
Not more than 4 persons	10	0	0	10	0	0
More than 4 but not more than 8 persons	12	0	0	12	0	0
More than 8 but not more than 14 persons	32	0	0	40	0	0
More than 14 but not more than 20 persons	48	0	0	60	0	0
More than 20 but not more than 26 persons	68	0	0	85	0	0
More than 26 but not more than 32 persons	88	0	0	110	0	0
More than 32 but not more than 40 persons	108	0	0	135	0	0
More than 40 but not more than 48 persons	128	0	0	160	0	0
More than 48 but not more than 56 persons	148	0	0	185	0	0
More than 56 but not more than 64 persons	164	0	0	205	0	0
More than 64 persons—						
For the first 64 persons	164	0	0	205	0	0
For each additional person in excess of 64	2	0	0	2	10	0

For the purpose of this paragraph the number of persons mentioned does not include the driver of the vehicle and the seating capacity of a vehicle shall be determined in accordance with provisions made by regulations under section twelve of the Roads Act, 1920.

10 & 11
Geo. 5. c. 72.

For the purpose of this paragraph—

51 & 52 Vict.
c. 8.

(i) the expression “hackney carriage” has the meaning assigned to it by section four of the Customs and Inland Revenue Act, 1888;

(ii) the expression “pneumatic tyres” means such tyres as are declared by regulations made under section twelve of the Roads Act, 1920 (as amended by any subsequent enactment), to be pneumatic tyres;

(iii) the expression "light oils" has the meaning assigned to it by subsection (3) of section two of the Finance Act, 1928;

7TH SCH.
—cont.

(iv) the expression "coal gas" means the inflammable gaseous product obtained by heating coal or coke with or without the addition of steam but with limitation of air, or such a product mixed with gaseous products derived from hydrocarbon oils as defined in subsection (9) of section two of the Finance Act, 1928.

PART II.

PARAGRAPH TO BE SUBSTITUTED FOR PARAGRAPH 4 OF THE SECOND SCHEDULE TO THE FINANCE ACT, 1920.

Description of vehicles.	Rate of duty.
4.—(a) Locomotive ploughing engines, tractors, agricultural tractors and other agricultural engines, which are not used on roads for hauling any objects except their own necessary gear, threshing appliances, farming implements or supplies of water or fuel required for the purposes of the vehicle or for agricultural purposes	£ s. d. 0 5 0
(b) Vehicles designed, constructed and used for the purpose of trench digging and other excavation work which are used on roads only for that purpose or for the purpose of proceeding to and from the place where they are to be used for that purpose, and when so proceeding neither carry nor haul any load other than such as is necessary for their propulsion or equipment	0 5 0
(c) Mowing machines	0 5 0
(d) Tractors, agricultural tractors and agricultural engines (other than vehicles in respect of which a duty of five shillings is chargeable under the foregoing provisions of this paragraph) which are registered under the Roads Act, 1920, in the name of a person engaged in agriculture, and are	

7TH SCH.
—cont

Description of vehicles.	Rate of duty.
	£ s. d.

not used on roads for hauling any objects except the produce of, or articles required for the purposes of, the agricultural land occupied by that person—

Not exceeding 5 tons in weight unladen . . . 12 0 0

Exceeding 5 tons in weight unladen but not exceeding 10 tons in weight unladen . . . 20 0 0

Exceeding 10 tons in weight unladen—

For the first 10 tons . . . 20 0 0

For each additional ton or part of a ton in excess of 10 tons . . . 2 0 0

(e) Vehicles (other than vehicles in respect of which duty is chargeable under the foregoing provisions of this paragraph) which are constructed and used upon roads for haulage solely and not for the purpose of carrying or having superimposed upon them any load except such as is necessary for their propulsion or equipment—

(i) Being vehicles registered under the Roads Act, 1920, in the name of a person following the business of a travelling showman and used solely by him for the purposes of his business and for no other purpose—

Not exceeding $7\frac{1}{2}$ tons in weight unladen . . . 25 0 0

Exceeding $7\frac{1}{2}$ tons in weight unladen but not exceeding 8 tons in weight unladen . . . 30 0 0

Exceeding 8 tons in weight unladen but not exceeding 10 tons in weight unladen . . . 35 0 0

Exceeding 10 tons in weight unladen—

For the first 10 tons . . . 35 0 0

For each additional ton or part of a ton in excess of 10 tons . . . 5 0 0

Description of vehicles.	Rate of duty.	7TH SCH. —cont.
(ii) Other such vehicles—	£ s. d.	
Not exceeding 2 tons in weight unladen -	25 0 0	
Exceeding 2 tons in weight unladen but not exceeding 4 tons in weight unladen -	40 0 0	
Exceeding 4 tons in weight unladen but not exceeding 6 tons in weight unladen -	55 0 0	
Exceeding 6 tons in weight unladen but not exceeding 7½ tons in weight unladen -	70 0 0	
Exceeding 7½ tons in weight unladen but not exceeding 8 tons in weight unladen -	85 0 0	
Exceeding 8 tons in weight unladen—		
For the first 8 tons - - - -	85 0 0	
For each additional ton or part of a ton in excess of 8 tons - - - -	15 0 0	

PART III.

PARAGRAPH TO BE SUBSTITUTED FOR PARAGRAPH 5 OF THE SECOND SCHEDULE TO THE FINANCE ACT, 1920.

5.—(a) Goods vehicles registered under the Roads Act, 1920, in the name of a person engaged in agriculture and used on roads solely by that person for the purpose of the conveyance of the produce of, or of articles required for the purposes of, the agricultural land which he occupies and for no other purpose.

	Vehicles fitted entirely with pneumatic tyres.	Other vehicles.
	£ s. d.	£ s. d.
Not exceeding 12 cwt. in weight unladen -	10 0 0	10 0 0
Exceeding 12 cwt., but not exceeding 1 ton in weight unladen - - - -	11 0 0	11 0 0
Exceeding 1 ton, but not exceeding 1½ tons in weight unladen - - - -	12 0 0	12 0 0
Exceeding 1½ tons, but not exceeding 2 tons in weight unladen - - - -	13 0 0	13 0 0
Exceeding 2 tons, but not exceeding 2½ tons in weight unladen - - - -	14 0 0	18 13 4
Exceeding 2½ tons, but not exceeding 3 tons in weight unladen - - - -	16 0 0	21 6 8
Exceeding 3 tons in weight unladen—		
For the first 3 tons - - - -	16 0 0	21 6 8
For each additional ton or part of a ton in excess of 3 tons - - - -	2 0 0	2 13 4

7TH SCH.
—cont.

Description of Vehicles.	Rate of duty.					
(b) Goods vehicles registered under the Roads Act, 1920, in the name of a person following the business of a travelling showman, which are permanently fitted with a living van or some other special type of body or superstructure, forming part of the equipment of his show, and used solely by him for the purposes of his business, and for no other purpose—	Vehicles fitted entirely with pneumatic tyres.			Other vehicles.		
	£	s.	d.	£	s.	d.
Not exceeding 12 cwt. in weight unladen -	10	0	0	10	0	0
Exceeding 12 cwt., but not exceeding 1 ton in weight unladen -	12	0	0	12	0	0
Exceeding 1 ton, but not exceeding 1½ tons in weight unladen -	14	0	0	14	0	0
Exceeding 1½ tons, but not exceeding 2 tons in weight unladen -	16	0	0	16	0	0
Exceeding 2 tons, but not exceeding 2½ tons in weight unladen -	18	0	0	24	0	0
Exceeding 2½ tons, but not exceeding 3 tons in weight unladen -	20	0	0	26	13	4
Exceeding 3 tons in weight unladen—	20	0	0	26	13	4
For the first 3 tons -	20	0	0	26	13	4
For each additional ton or part of a ton in excess of 3 tons -	4	0	0	5	6	8
(c) Goods vehicles other than vehicles chargeable with duty under subparagraph (a) or (b) of this paragraph—						
(i) which are electrically propelled—						
Not exceeding 12 cwt. in weight unladen -	10	0	0	10	0	0
Exceeding 12 cwt., but not exceeding 1 ton in weight unladen -	15	0	0	15	0	0
Exceeding 1 ton, but not exceeding 2 tons in weight unladen -	20	0	0	20	0	0
Exceeding 2 tons, but not exceeding 2½ tons in weight unladen -	25	0	0	33	6	8
Exceeding 2½ tons, but not exceeding 3 tons in weight unladen -	30	0	0	40	0	0
Exceeding 3 tons, but not exceeding 4 tons in weight unladen -	35	0	0	46	13	4
Exceeding 4 tons, but not exceeding 5 tons in weight unladen -	40	0	0	53	6	8
Exceeding 5 tons, but not exceeding 6 tons in weight unladen -	45	0	0	60	0	0
Exceeding 6 tons in weight unladen—	45	0	0	60	0	0
For the first 6 tons -	45	0	0	60	0	0
For each additional ton or part of a ton in excess of 6 tons -	10	0	0	13	6	8

Description of vehicles.

Rate of duty.

7TH SCH.
—cont.

	Vehicles fitted entirely with pneumatic tyres.	Other vehicles.
(ii) which are propelled by steam or which are constructed or adapted to use coal gas as fuel—		
Not exceeding 2 tons in weight unladen -	£. s. d. 25 0 0	£. s. d. 25 0 0
Exceeding 2 tons, but not exceeding 2½ tons in weight unladen - - - -	30 0 0	40 0 0
Exceeding 2½ tons, but not exceeding 3 tons in weight unladen - - - -	35 0 0	46 13 4
Exceeding 3 tons, but not exceeding 4 tons in weight unladen - - - -	50 0 0	66 13 4
Exceeding 4 tons, but not exceeding 5 tons in weight unladen - - - -	70 0 0	93 6 8
Exceeding 5 tons, but not exceeding 6 tons in weight unladen - - - -	90 0 0	120 0 0
Exceeding 6 tons in weight unladen—		
For the first 6 tons - - - -	90 0 0	120 0 0
For each additional ton or part of a ton in excess of 6 tons - - - -	15 0 0	20 0 0
(iii) which are not constructed or adapted to use as fuel any fuel other than light oils—		
Not exceeding 12 cwt. in weight unladen -	10 0 0	10 0 0
Exceeding 12 cwt., but not exceeding 1 ton in weight unladen - - - -	15 0 0	15 0 0
Exceeding 1 ton, but not exceeding 1½ tons in weight unladen - - - -	20 0 0	20 0 0
Exceeding 1½ tons, but not exceeding 2 tons in weight unladen - - - -	25 0 0	25 0 0
Exceeding 2 tons, but not exceeding 2½ tons in weight unladen - - - -	30 0 0	40 0 0
Exceeding 2½ tons, but not exceeding 3 tons in weight unladen - - - -	35 0 0	46 13 4
Exceeding 3 tons, but not exceeding 4 tons in weight unladen - - - -	50 0 0	66 13 4
Exceeding 4 tons in weight unladen—		
For the first 4 tons - - - -	50 0 0	66 13 4
For each additional ton or part of a ton in excess of 4 tons - - - -	20 0 0	26 13 4

7TH SCH.
—cont.

Description of vehicles.

Rate of duty.

	Vehicles fitted entirely with pneumatic tyres.	Other vehicles.
(iv) which are not chargeable with duty under the foregoing provisions of this sub-paragraph—		
Not exceeding 2½ tons in weight unladen -	£ 35 0 0	£ 46 13 4
Exceeding 2½ tons, but not exceeding 3 tons in weight unladen - - - - -	45 0 0	60 0 0
Exceeding 3 tons, but not exceeding 4 tons in weight unladen - - - - -	65 0 0	86 13 4
Exceeding 4 tons, but not exceeding 5 tons in weight unladen - - - - -	90 0 0	120 0 0
Exceeding 5 tons, but not exceeding 6 tons in weight unladen - - - - -	120 0 0	160 0 0
Exceeding 6 tons, but not exceeding 7 tons in weight unladen - - - - -	150 0 0	200 0 0
Exceeding 7 tons in weight unladen—		
For the first 7 tons - - - - -	150 0 0	200 0 0
For each additional ton or part of a ton in excess of 7 tons - - - - -	25 0 0	33 6 8
	£ s. d.	
(d) Goods vehicles if used for drawing a trailer—		
(i) being vehicles chargeable with duty under sub-paragraph (b) of this paragraph and used for drawing a trailer which is used solely for the purposes of his business by the person in whose name the vehicle is registered - - -	10 0 0	
(ii) other vehicles—		
where the weight of the vehicle unladen does not exceed 2½ tons - - - - -	10 0 0	
where the weight of the vehicle unladen exceeds 2½ tons but does not exceed 4 tons	15 0 0	
where the weight of the vehicle unladen exceeds 4 tons - - - - -	20 0 0	

The duty chargeable under sub-paragraph (d) of this paragraph in respect of any vehicle shall be chargeable in addition to the duty chargeable on the vehicle under sub-paragraph (a) (b) or (c) of this paragraph.

7TH SCH.
—cont.

Where a vehicle used for drawing a trailer has the trailer attached to it by partial superimposition, the vehicle and trailer shall, for the purpose of determining the amount of duty chargeable under this paragraph, be treated as if they together formed a single vehicle, and the vehicle shall not be chargeable with duty under sub-paragraph (d) of this paragraph.

For the purposes of this paragraph, the expression "goods vehicles" means vehicles (including tricycles weighing more than eight hundred-weight unladen) constructed or adapted for use and used for the conveyance of goods or burden of any description, whether in the course of trade or otherwise, and the expressions "pneumatic tyres," "light oils" and "coal gas" have respectively the same meanings as in paragraph 3 of this Schedule.

For the purposes of this paragraph a vehicle registered under the Roads Act, 1920, in the name of a person engaged in agriculture shall not be deemed to be used otherwise than solely by that person for the purpose of the conveyance of the produce of, or of articles required for the purposes of, the agricultural land which he occupies, by reason only that on an occasion when the vehicle is being used by that person for that purpose it is also used for the conveyance for some other person engaged in agriculture of the produce of, or articles required for the purposes of, agricultural land occupied by that other person, if it is shown,—

- (a) that the vehicle is so used only occasionally;
 - (b) that the goods conveyed for that other person represent only a small proportion of the total amount of goods which the vehicle is conveying on that occasion;
 - (c) that no payment or reward of any kind is, or is agreed to be, made or given for the conveyance of the goods of that other person.
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EIGHTH SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
43 & 44 Vict. c. 24.	The Spirits Act, 1880.	Subsection (4) of section ninety-five.
7 & 8 Geo. 5. c. 31.	The Finance Act, 1917.	Section thirty-two.
8 & 9 Geo. 5. c. 40.	The Income Tax Act, 1918.	Subsection (4) of section thirty-nine.
11 & 12 Geo. 5. c. 47.	The Safeguarding of Industries Act, 1921.	Section ten.
15 & 16 Geo. 5. c. 36.	The Finance Act, 1925.	Section ten.
17 & 18 Geo. 5. c. 10.	The Finance Act, 1927.	Subsection (1) of section eight and Part I of the Third Schedule.
18 & 19 Geo. 5. c. 17.	The Finance Act, 1928.	Section thirteen, as from the first day of January, nineteen hundred and thirty-four.
21 & 22 Geo. 5. c. 28.	The Finance Act, 1931.	Section three, as from the first day of January, nineteen hundred and thirty-four; section eight.
22 & 23 Geo. 5. c. 8.	The Import Duties Act, 1932.	Subsection (4) of section four; sections six, seven and seventeen and the Third Schedule.
22 & 23 Geo. 5. c. 25.	The Finance Act, 1932.	Subsection (4) of section twenty-eight.
22 & 23 Geo. 5. c. 53.	The Ottawa Agree- ments Act, 1932.	Subsection (7) of section two.

CHAPTER 20.

An Act to consolidate and simplify the law of
Scotland relating to false oaths, declarations,
and statements. [28th June 1933.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present